

7. REYES, ET AL. v. DEPT. OF TRANSPORTATION, SC20200027**Defendant's Motion for Sanctions**

On April 8, 2026,⁹ defendants California Department of Transportation and Nicholas Hudspeth (collectively, “defendants”), pursuant to Code of Civil Procedure section 128.7 (“Section 128.7”), filed a motion for the following sanctions: (1) \$3,451 against plaintiff Maria Reyes (“plaintiff”) and her attorney, Nicholas J.P. Wagner; and (2) \$5,000 against Nicholas J.P. Wagner. Defendants’ motion also requests an order shortening the 21-day safe harbor period to six days, April 3, 2025, to April 9, 2025.

On May 4, 2026, plaintiff filed a timely opposition.

On May 8, 2026, defendants filed a timely reply.

1. Background

At the pre-trial issues conference held on April 1, 2025, plaintiff orally requested the court to allow her to file a motion to disqualify defense counsel on shortened time. The court granted plaintiff’s request and set a hearing for April 11, 2025. Later on April 7, 2025, plaintiff filed an ex parte application to disqualify defense counsel (the alleged improper filing at issue).

Also on April 7, 2025, defendants filed their original motion for sanctions pursuant to Code of Civil Procedure section 128.7. Proof of service attached to the April 7, 2025, motion indicates it was electronically served upon plaintiff that same day.

On April 11, 2025, the court denied plaintiff’s motion to disqualify defense counsel.

2. Legal Principles

Code of Civil Procedure section 128.7 requires attorneys (or parties if they are unrepresented) to certify, through their signature on documents filed with the court, that every pleading, motion or other similar paper presented to the court has merit and

⁹ Defendants originally filed their Section 128.7 motion on April 7, 2025. On April 11, 2025, the court set the matter for hearing on April 18, 2025. Prior to April 18 hearing, however, the court vacated the hearing on defendants’ sanctions motion due to the plaintiffs’ filing of a notice of appeal.

is not being presented for an improper purpose. (*Musaelian v. Adams* (2009) 45 Cal.4th 512, 516; *Martorana v. Marlin & Saltzman* (2009) 175 Cal.App.4th 685; see Code Civ. Proc., § 128.7, subd. (b)(1)–(4).) If, after notice and a reasonable opportunity to respond, the court determines the certification was improper under the circumstances, it may impose an appropriate sanction. (Code Civ. Proc., § 128.7, subd. (c).)

Code of Civil Procedure section 128.7, subdivision (c)(1) contains a safe harbor provision.¹⁰ It requires the party seeking sanctions to serve on the opposing party, without filing or presenting to the court, a notice of motion specifically describing the sanctionable conduct. Service of the motion initiates a 21-day “hold” or “safe harbor” period. (See *Martorana, supra*, 175 Cal.App.4th at p. 698; *Banks v. Hathaway, Perrett, Webster, Powers & Chrisman* (2002) 97 Cal.App.4th 949, 953.) During this time, the offending document may be corrected or withdrawn without penalty. If that occurs, the motion for sanctions “shall not” be filed. (*Martorana*, at p. 698; Code Civ. Proc., § 128.7, subd. (c)(1).)

By mandating a 21-day safe harbor period to allow correction or withdrawal of an offending document, Code of Civil Procedure section 128.7 is designed to be remedial, not punitive. (*Martorana, supra*, 175 Cal.App.4th at p. 699.) “ ‘The purpose of the safe harbor provisions is to permit an offending party to avoid sanctions by withdrawing the improper pleading during the safe harbor period. [Citation.] This permits a party to withdraw a questionable pleading without penalty, thus saving the court and the parties

¹⁰ Code of Civil Procedure section 128.7 provides in part: “A motion for sanctions under this section shall be made separately from other *motions* or requests and shall describe the specific conduct alleged to violate subdivision (b). Notice of motion shall be served as provided in Section 1010, but shall not be filed with or presented to the court unless, within 21 days after service of the motion, or any other period as the court may prescribe, the challenged paper, claim, defense, contention, allegation, or denial is not withdrawn or appropriately corrected. If warranted, the court may award to the party prevailing on the motion the reasonable expenses and attorney’s fees incurred in presenting or opposing the motion....” (Code Civ. Proc., § 128.7, subd. (c)(1).)

time and money litigating the pleadings as well as the sanctions request.’ ” (*ibid.*; see *Malovec v. Hamrell* (1999) 70 Cal.App.4th 434, 440.)

The court is authorized to shorten the 21-day safe harbor period. (Code Civ. Proc., § 128.7, subd. (f)(1)(B) [“21 days after service of the motion *or any other period as the court may prescribe*” (italics added)]; Code Civ. Proc., § 128.7, subd. (c)(1) [same]; *Li v. Majestic Industrial Hills LLC* (2009) 177 Cal.App.4th 585, 594 [party seeking sanctions may seek an order shortening the 21-day safe harbor period].)

“Strict compliance with the statute’s notice provisions serves its remedial purpose and underscores the seriousness of a motion for sanctions.” (*Galleria Plus, Inc. v. Hanmi Bank* (2009) 179 Cal.App.4th 535, 538.)

3. Discussion

Even if the court were to grant defendants’ request for an order shortening the safe harbor period, defendants have ignored the action that must be taken to start the period – service of the notice of the sanctions motion. That action must be followed by the “prescribed” period before the motion may be filed.

Defendants originally served notice of their motion on April 7, 2025, the same day they filed their original sanctions motion.¹¹ The provisions of the sanctions statutes allowing the trial court to prescribe a safe harbor period other than a 21-day period do not give the court authority to prescribe a “no day” period. In enacting the mandatory safe harbor provisions, the Legislature clearly intended that the party against whom sanctions are sought *must* be given an opportunity to withdraw or correct the offending

¹¹ Any service of the motion made after April 11, 2025, when the court denied plaintiff’s motion to disqualify defense counsel, would be immaterial because at that point the court had already denied plaintiff’s motion; therefore, there was no offending document for plaintiff to withdraw. (See *Day v. Collingwood* (2006) 144 Cal.App.4th 1116, 1128 [courts in a number of cases “have concluded that a motion for sanctions under section 128.7 that is not *served* sufficiently in advance of a dispositive ruling on the challenged pleading fails to comply with the safe harbor provision set forth in section 128.7, subdivision (c)(1)”.])

document, action, or tactic *after* being given proper notice (including the actual sanctions motion) and *before* the sanctions motion is filed.

Because defendants did not strictly comply with the notice provisions, their motion is denied. (*Galleria Plus, Inc., supra*, 179 Cal.App.4th at p. 538.)

In the alternative, even if defendants complied with the safe-harbor provision, the court would still deny the motion on the merits because defendants have not met their burden of showing that plaintiff's counsel's signature on the motion to disqualify defense counsel was improper. Defendant claims plaintiff's counsel's statement during the April 1, 2025, issues conference (wherein counsel allegedly stated that regardless of whether the motion to disqualify is granted or denied, the then-scheduled trial date would not go forward) shows the motion was filed for the improper purpose of delay. The court disagrees. The statement allegedly made by plaintiff's counsel does not necessarily demonstrate that counsel filed the motion for the sole purpose of delaying the trial.

TENTATIVE RULING # 7: DEFENDANTS' MOTION FOR SANCTIONS IS DENIED. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.